INDIAN EVIDENCE ACT, 1872 & HISTORIC PRECEDENTS

Act No. 1 of 1872 & Foundational Ratio Decidendi for Pre-Transition Cases
Admissibility of Electronic Evidence, Section 27 Discovery & Landmark Rulings

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Section 25, 26 & 27 IEA (Confessions to Police & Discovery of Fact)

Section 25 bars proof of confessions made to police officers. Section 26 bars confessions made in police custody unless in immediate presence of Magistrate. Section 27 operates as an exception: when any fact is discovered in consequence of information received from an accused in police custody, so much of such information as relates distinctly to the fact discovered may be proved (Pulukuri Kottaya doctrine).

Section 32(1) IEA (Dying Declaration)

Statements, written or verbal, of relevant facts made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question, are admissible.

Section 65A & 65B IEA (Admissibility of Electronic Records & Mandatory Certificate)

Electronic records can only be proved in accordance with Section 65B. Section 65B(4) mandates production of a certificate identifying the electronic record, describing the device, and signed by a person occupying a responsible official position. In Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020) 7 SCC 1, a 3-Judge Bench held that a Section 65B(4) certificate is an absolute condition precedent to admissibility when the original optical/electronic device is not produced.

Section 101, 102 & 106 IEA (Burden of Proof)

Section 101 establishes that whoever desires any court to give judgment as to any legal right dependent on the existence of facts which he asserts, must prove that those facts exist. Section 106 provides that when any fact is especially within the knowledge of any person, the burden of proving that fact is upon him.

Section 113A & 113B IEA (Presumptions: Suicide & Dowry Death)

Section 113A permits presumption of abetment of suicide of a married woman within 7 years of marriage if cruelty under Section 498A IPC is proved. Section 113B provides a mandatory presumption of dowry death if woman was subjected to cruelty or harassment soon before death in connection with dowry.

State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335 (7 Quashing Guidelines)

Foundational 7 Categories for Quashing under Section 482 CrPC / Article 226:
(1) Allegations in FIR, even if taken at face value, do not prima facie constitute any offence.
(2) Allegations do not disclose a cognizable offence justifying investigation under Section 156(1).
(3) Uncontroverted allegations and evidence do not disclose commission of any offence.
(4) Allegations constitute only non-cognizable offence without Magistrate's order under Section 155(2).
(5) Allegations are so absurd and inherently improbable that no prudent person can reach a conclusion of ground.
(6) Express legal bar engrafted in the Code or Act to the institution/continuance of proceedings.
(7) Criminal proceeding is manifestly attended with mala fide and instituted with an ulterior motive for wreaking vengeance.

Gurbaksh Singh Sibbia v. State of Punjab, (1980) 2 SCC 565 (5-Judge Constitution Bench)

Core Ratio Decidendi: Section 438 CrPC confers extraordinary and discretionary power to protect personal liberty guaranteed under Article 21. Anticipatory bail cannot be fettered by conditions not warranted by the statute; it is not confined only to exceptional or rare cases, and broad general principles of judicial discretion must govern each case on its merits.

Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1 (5-Judge Constitution Bench)

Core Ratio Decidendi: Reaffirmed Sibbia. Held that anticipatory bail granted under Section 438 CrPC should not ordinarily be restricted or limited to a fixed period of time and can continue till the end of the trial unless special circumstances require temporal limitation.

Sharad Birdhichand Sarda v. State of Maharashtra, (1984) 4 SCC 116 (Panchsheel of Circumstantial Evidence)

Core Ratio Decidendi: Formulated the five golden principles (Panchsheel) governing circumstantial evidence in criminal trials: (1) Circumstances from which the conclusion of guilt is drawn must be fully established; (2) Facts established must be consistent only with the hypothesis of guilt; (3) Circumstances must be of conclusive nature and tendency; (4) Must exclude every possible hypothesis except guilt; (5) Chain of evidence must be so complete as to leave no reasonable ground for innocence.

Pulukuri Kottaya v. King-Emperor, (1947) LR 74 IA 65 (Privy Council)

Core Ratio Decidendi: Settled the scope of Section 27 Evidence Act: only that part of the statement which distinctly leads to the discovery of the physical fact (e.g., hidden weapon or property) is admissible; confessions of past guilt (e.g., 'I killed X with this knife') are severed and excluded.

Maneka Gandhi v. Union of India, (1978) 1 SCC 248 (7-Judge Constitution Bench)

Core Ratio Decidendi: Landmark expansion of Article 21: 'procedure established by law' must not be arbitrary, fanciful or oppressive; it must be just, fair and reasonable, incorporating the principles of natural justice into criminal procedural actions.